BARLINGTON MUVIRIMI

Versus

ZIMBABWE REVENUE AUTHORITY

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
MASVINGO 13 October 2025 & 22 April 2026

Court application for review

P. Magumula for the applicant
Ms. T. E. Kamema for the respondent

DUBE-BANDA J:

[1] This is an application for review made in terms of s 3(1)(a) and 4(1) of the Administrative Justice Act [*Chapter 10:28*] as read with r 62 (1) of the High Court Rules, 2021. For completeness, s 3(1)(a) of the Administrative Justice Act provides that an administrative authority which has the responsibility or power to take any administrative action which may affect the rights, interests or legitimate expectations of any person shall act lawfully, reasonably and in a fair manner.

[2] The applicant is a Zimbabwean national, and the respondent is the Zimbabwe Revenue Authority, a body corporate established in terms of the Revenue Authority Act [*Chapter 23:11*] whose primary function is, *inter alia*, to act as the agent of the State in assessing, collecting, and enforcing the payment of all revenue, including customs taxes.

[3] The applicant seeks an order couched in the following terms:

a) That respondent's decision that applicant changed his address without notifying her and that applicant used forged documents be and is hereby set aside as being unreasonable.
b) That the Release terms/conditions of applicant's vehicle by the respondent, through respondent's letter dated 12 March 2025 are hereby set aside as being unlawful, unreasonable and unfair and substituted by the following order:

The respondent to release applicant's vehicle a Toyota Fortuner CHS AHT ZZ69G205011426 REG number AGH 4322 held under seizure number 03782IL of 10 October 2024 ("vehicle"), forthwith without levying any storage fees.

c) The respondent to pay costs of suit if opposed to the application.

[4] The application is opposed.

[5] In summary, the applicant's case is that the decision of the respondent to the effect that he changed his residential address and forged the vehicle documents is unreasonable and unfair. He contends that he resides at number 452 Dulibadzimu, Beitbridge ("number 452"). He did not change his address. In support of his contention that he resides at number 452; he attached a letter from the Municipality of Beitbridge. He contends that he does some farming activities in Plot 33, Greenlands, Beatrice. He avers that on 18 October 2024, he informed the Anti-Smuggling Unit of his farming activities at Beatrice. He avers that it was unreasonable for the respondent to conclude that his visit to the Plot and attending his niece's lobola amounted to a change of address.

[6] In respect of the alleged forged documents, he avers that what he surrendered to the respondent were original documents and the SARS documents which he was given by the agent for the purposes of pre-clearance interviews. He contends that he did not know that the documents that were lodged by his agent were forged. His opinion is that possible SARS might have uplifted the value in a bid to align it with their valuation models. He contends that he had no intention to defraud the respondent since he qualified for customs duties suspension under the immigrant rebate facility. He contends further that he cannot be liable for the conduct of the agent, and that the release terms are unlawful, unfair, unreasonable, and not proportional to the alleged infractions.

[7] The applicant attached a supporting affidavit deposed to by one Dakarai Shumba ("the agent"). The deponent states that he is a clearing agent; he was engaged by the applicant as his agent to import the vehicle. He obtained export documents from his counterpart agent in South Africa, and he handed over the same documents to the applicant for submission with the respondent for the purpose of pre-clearance interviews. He further contends that the applicant is only responsible for the vehicle registration book, his passport, and proof of employment.

He avers further that the applicant has no knowledge of the clearance process and of the forged documents. It is against this background that the applicants filed this application seeking the relief stated above.

[8] The respondent's version is that the applicant is a returning resident, and he imported his vehicle under Immigrant rebate number ZWBB/MT/IMM/REB/11/2023. The respondent's Beitbridge Enforcement team followed up on thirty-three vehicles imported under Suspension of Duty imported by Immigrants with Beitbridge addresses for post-clearance verification as part of a national project. The applicant was not located at number 452 Dulibadzimu, Beitbridge, the address he provided to the respondent. According to the respondent, the applicant was not known at number 452 Dulibadzimu, Beitbridge, and he never resided at that address. To locate the vehicle, the respondent sought the assistance of the Zimbabwe National Roads Authority ("ZINARA"), and the vehicle was flagged in the system to allow a post-clearance audit. The vehicle was intercepted and detained by Greater Harare Enforcement on RIH number 028225 of 3 August 2024. It was found in the possession of one Tatenda Keen Chimuzinga of 97 West Road, Avondale, Harare. On 18 October 2024, the applicant appeared at the offices of the respondent and was interviewed by the Beitbridge Anti-smuggling team.

[9] The respondent contends further that the investigating team established that the applicant resided at a Farm in Beatrice, and he did not provide a physical address. In addition, the respondent contends that the vehicle was deregistered in South Africa for export to Zimbabwe; the SAD 500 was not authentic as the value was incorrect as seen on CN1; the vehicle was undervalued using forged documents, resulting in understating of the duty by USD$7121,97 if he qualified for the Suspension. In the circumstances, the vehicle was seized, the applicant appealed to the Regional Manager, and he was issued with release terms. He further appealed to the Commissioner, who confirmed, with minor adjustments, the Regional Manager's release terms. The final release terms were these:

i. Payment of additional duty amounting to USD 7,121.39.
ii. Payment of a reduced fine of USD$6,405 (70% of duty due) payable in local currency at interbank rate at the time of collection of the motor vehicle.

iii. Payment of a fine of USD2000.00 or equivalent in local currency for the use of forged documentation.

iv. Payment of a fine of USD$400.00 for violation of immigration's rebate regulations which may be payable in local currency at the prevailing interbank exchange rate on the date of payment.

v. Interest charges due from date of importation.

[10] The applicant was aggrieved by the final release terms. It was contended that the decision that the applicant changed his residential address and that he forged the vehicle documents was unreasonable.

[11] As stated above, in terms of s 3(1)(a) of the Administrative Justice Act (*Chapter 10:28*) an administrative authority shall act lawfully, reasonably, and in a fair manner. The applicant contended that the decision of the respondent was unreasonable. It is trite position of the law that a decision is reviewable, on the grounds of unreasonableness, if it is one that a reasonable decision-maker could not reach. Factors relevant to determining whether a decision is reasonable or not will include the nature of the decision, the identity and expertise of the decision-maker, the range of factors relevant to the decision, and the reasons given for the decision. It is important for the court, in dealing with a review based on the concept of unreasonableness, to take care not to usurp the functions of administrative authority. See *Bato Star Fishing (Pvt) Ltd* v *Minister of Environmental Affairs and Tourism and Others* 2004 4 SA 490 (CC).

[12] In *casu*, the first issue for resolution is factual, i.e., did the applicant provide the respondent with a false residential address to get an immigrant rebate. When determining disputes of fact in motion proceedings, the court applies the test set out in *Plascon – Evans Paint Ltd* v *Van Riebeck Paints (Pty) Ltd* [1984] ZASCA 51; 1984 (3) SA 623(A) 634-635, that the respondent's version may be rejected on the paper if it consists of bald or uncreditworthy denials, raises fictitious disputes of fact, is palpably implausible, farfetched and so clearly untenable that the court is justified in rejecting them merely on the papers. See *National Director of Public Prosecutions v Zuma* 2009 (2) SA 279 SCA [26].

[13] The allegation is that the applicant provided a false residential address, in that he does not reside at number 452 Dulibadzimu, Beitbridge. The facts show that the vehicle was intercepted and detained on 3 August 2024. The confirmation letter from the local authority is dated 15 October 2024, three days before he attended the post-audit clearance interview on 18 October 2024. It is clear that the confirmation letter was created for the purpose of the post audit interview. Most importantly, for the local authority to confirm that he resides at the given address, it must base its confirmation on some documentation. It could be utility bills, a cession document, a deed of transfer, or a lease agreement. Without any supporting documents to show that he is a resident at the address given, the confirmation from the local authority is standing on nothing. The confirmation letter, although bearing the stamp of the local authority, was not signed. This shows that the said S. Moyo, the alleged author, did not take responsibility for it.
[14] In addition, the confirmation says the applicant has been a resident at number 452 for a period of not less than ten years. This cannot be correct because he presented himself at the port of entry on 16 November 2023 as a returning resident from South Africa. It is therefore illogical to say he was a resident at number 452 Dulibadzimu, Beitbridge, for ten years preceding the date of the letter, i.e., 15 October 2024. He could not have been a resident at number 452 and a resident of South Africa at the same time. What was required of him was to provide acceptable proof of post-return residence. Not pre-return residence. He did not provide acceptable proof that after his return to Zimbabwe, he resided at number 452 Dulibadzimu, Beitbridge. In addition, the supporting affidavits of Fungai Kasirayi and Takudzwa Patrick Junior Mangwiro, Revenue Officers, show that the applicant does not reside at number 452 Dulibadzimu, Beitbridge. In addition, the vehicle was registered in Harare, and the registration book was issued at the Central Vehicle Registry Head Office in Harare, not at the Beitbridge Border Post. This also corroborates the respondent's version that the applicant does not reside at number 452 Dulibadzimu, Beitbridge. It cannot be said that the respondent's version is far-fetched and so clearly untenable that the court will be justified in rejecting it merely on the papers. As a result of the above, it has been shown that the applicant provided the respondent with a false residential address. Therefore, the decision of the respondent that the applicant provided a false residential address passes the test of reasonableness.

[15] Turning to the law, s 223(4) of the Customs and Excise Act [*Chapter 23:02*] empowers the respondent to conduct a post-clearance audit on goods that have been released at the port of entry or exit to verify the accuracy of the information provided in the declaration. Further to carry out inspections at the premises of the owner of the goods, or at the place to which the goods are destined, or at the premises where any documentation or data relating to the goods in question is located or may reasonably be expected to be found. In *casu*, the respondent carried out a post-clearance audit and established that the applicant does not reside at 452 Dulibadzimu, Beitbridge. Section 9NO (6) of the Customs and Excise (Suspension) (Amendment) Regulations, 2022 (No. 257) provides that:

> "Any immigrant to whom a suspension of duty has been granted in terms of this section shall with effect from 1st January 2022, for a period of 2 years after the granting of the suspension—
> (a) notify the Commissioner of any change of their residential address within fourteen days of the date of such change; and
> (b) report to the nearest Customs office once every year, failure of which full duty waived at the time of importation shall become due and payable."

[16] The applicant, by providing the respondent with a false residential address, violated the conditions under which the requisite returning resident rebate was granted. In the circumstances, the respondent acted within the parameters of the law in withdrawing or revoking the rebate and seizing the motor vehicle pending payment of the requisite duty.

[17] Regarding the forged documents, the applicant and his agent do not dispute that the vehicle documents were forged. The contention is that the applicant had no knowledge that the vehicle documents were forged and that the documents relied on by the respondent are not admissible in evidence. The submission that the documents produced by the respondent are inadmissible has no merit. The applicant and his agent do not dispute that these are the documents that were submitted in support of the clearance of the vehicle. In his supporting affidavit, the agent says:

i. "I wish to state that after the applicant had engaged me as his agent, I then went on to engage a South African agent for convenience to help us get the invoice from the car dealership where the applicant bought his vehicle, and thereafter lodge export documents with SARS.
ii. After receiving all export documents from our counterpart in South Africa and the invoice and other supporting documents, I handed them to the applicant for submission with the respondent for the purpose of pre-clearance interviews.

iii. Unfortunately, I was then informed by the applicant that the submitted documents were purportedly fraudulent documents. I then called the South African agent to inquire about why the documents were alleged to be fraudulent documents however, he was equally surprised, as according to him, he believed the documents were authentic ones."

[18] Therefore, it is not in dispute that the documents in issue are the same documents that the agent handed over to the applicant. These are the documents the applicant submitted to the respondent. These are the documents that are fake. The applicant cannot be permitted, when convenient to him, to turn around and challenge the admissibility of the documents that he submitted to the respondent. In any event, if the applicant has other authentic documents that he submitted, he should have produced such documents. In fact, he is the applicant in this applicant; the *onus* is on him to show that genuine documents were submitted for the clearance of the vehicle. He produced no such documents. In the result, the vehicle documents produced by the respondent are admissible in evidence.

[19] In the circumstances, it has been established that the vehicle was undervalued to prejudice the fiscus of the Value Added Tax, as it is calculated based on the value of the vehicle. Presentation of forged documents of a motor vehicle is in contravention of s 174 of the Customs and Excise Act, which prohibits presentation of a false invoice or an invoice framed and created to deceive the respondent. The applicant cannot escape liability on the basis that the clearance of the vehicle was done by his agent. He is liable in terms of s 218(3) of the Customs and Excise Act, which provides that:

> "Any person who appoints an agent to carry out any requirements of this Act on his behalf shall be responsible for any action of his agent while acting on his behalf and shall be liable to prosecution for any contravention of this Act committed by his agent while acting on his behalf."

[20] The view I take is that although the above provision speaks of prosecution, it equally applies to civil litigation. In addition, I am of the view that to allow a principal to evade liability because they were not personally present or aware of the misconduct or forging of documents by the agent would defeat the purpose of the clear provisions of the Act. In any event, on the facts of this case, I do not believe that the applicant was not aware of the forged documents. The agent handed the paper to him for submission. He submitted the documents to the respondent. He must have noticed that the vehicle was undervalued using forged documents.

Either way, the applicant cannot escape liability for the forged documents. Therefore, the decision of the respondent that the applicant submitted forged vehicle documents passes the test of reasonableness.

[21] In the circumstances, the revocation or withdrawal of the immigrant rebate and the seizure of the vehicle were lawful. In fact, the import of the Customs and Excise Act and the regulation is that an immigrant to whom a suspension of duty has been granted and fails to comply with the terms of conditions thereof, shall have the duty waived become due and payable. Therefore, the argument that the decision of the respondent is unreasonable and unfair has no merit.

[22] I turn to consider the relief sought in this application. The relief sought is that the release terms/conditions are unlawful and not proportional to the alleged violation considering the value of the vehicle. The applicant sought that the court orders the release of the vehicle forthwith without levying any storage fees. This court cannot accede to the relief sought by the applicant. It is so because the respondent is an expert in the administration of the Customs and Excise Act and the regulations made under it. It considered all relevant facts and came up with release terms. It is important for the court in an application for review to take care not to usurp the functions of administrative authority. The court must exercise deference in matters that are in the domain of administrative authorities. It must recognize and protect the decision-making of administrative bodies in a manner that will prevent their ability to discharge their administrative role from being undermined. There may be instances where the court may have to intrude on the terrain of administrative bodies, however in doing so, the courts must remain sensitive to the legitimate interests of these bodies and intrude as little as possible. A court should be careful not to attribute to itself superior wisdom in relation to matters legislatively entrusted to administrative bodies. It must give due weight to findings of fact and policy decisions made by those with expertise and experience in the field. See *Bato Star Fishing (Pty) Ltd* v *Minister of Environmental Affairs* 2004 4 SA 490 (CC); *Kirstein* v *Registrar General & Ors* 2019 (3) ZLR 1275 (H); *Premier of Mpumalanga* v *Executive Committee of State-aided Schools, Eastern Transvaal* 1999 2 SA 91 (CC) para 51. The imposition of release terms is in the domain of the respondent. It is the respondent who knows the formular of calculating release terms in a particular case. There are several considerations that the respondent factors into the equation in calculating release terms. It considers the value of the vehicle, potential or

actual prejudice to the fiscus etc. This court mut be very slow to interfere with such a decision. Neither can the court order that the applicant not pay storage charges. Such would amount to unlawful usurping the functions of administrative authority.

[23] It is for the above reasons that this application has no merit and cannot succeed. The question of costs remains remaining to be considered. No good grounds exist for a departure from the general rule that costs follow the cause. The respondent is clearly entitled to its costs. In the result, it is ordered as follows:

The application is dismissed with costs on a party and party scale.

Musina Attorneys at Law, applicant's legal practitioners
Zimbabwe Revenue Authority Legal Services Division, respondent's legal practitioners